

Court No. - 46

Case :- WRIT - C No. - 20208 of 2020

Petitioner :- Naresh Kumar

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Akhilesh Kumar Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Heard Sri Akhilesh Kumar Pandey, learned counsel for the petitioner, learned Standing counsel for the respondent nos. 1, 2 and 3 and Sri Baleshwar Chaturvedi, learned counsel for the respondent no.4.

The present writ petition has been filed with the following relief;

1. Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery notice dated 26.10.2020 issued by the respondent no. 3 (Annexure No.1).

2. Issue a writ, order or direction in the nature of mandamus commanding the respondents to accept the actual due amount in easy instalments to be fixed by this Hon'ble Court.

3. Issue a writ, order or direction in the nature of mandamus commanding the respondent no.3 for not adopting any coercive methods for realization of electricity dues.

4. Issue any writ, order or direction, which this Hon'ble Court may deem just fit and proper in the facts and circumstances of the case.

4. To award costs of the writ petition in favour of the petitioner."

It is contended by the learned counsel for the petitioner that he is ready to deposit the due amount in instalments sought to be recovered from the petitioner by the respondent Corporation.

Sri Baleshwar Chaturvedi, learned counsel for the Power Corporation submits that there is a provision under Clause 6.14 of Electricity Supply Code, 2005, as such the petitioner may approach the respondent no. 4 for ventilating his grievance.

Considering the facts and circumstances of the case but without entering into the merits of the case, we dispose of the writ petition with the liberty to the petitioner to approach the respondent no. 4 by making a representation within two weeks who in turn shall consider the grievance of the petitioner and pass appropriate order in accordance with law within four weeks thereafter.

Order Date :- 2.12.2020

Shahnawaz